

COMPLAINANT'S BRIEF

Worldwide Nexus Logistics, LLC v. Wallenius Wilhelmsen Ocean AS

Federal Maritime Commission – Docket No. 25-15

I. Introduction

This case arises from Respondent's failure to accurately transmit cargo manifest information for shipments carried aboard the vessel MORNING LADY during a voyage calling at Pisco, Peru. Complainant Worldwide Nexus Logistics, LLC ("WNL"), a licensed non-vessel operating common carrier, arranged ocean transportation services for three boats through Respondent Wallenius Wilhelmsen Ocean AS ("WVO"). The shipments were booked for final delivery to San Antonio, Chile, and were seized during an intermediate port call in Pisco, Peru while in transit.

The evidentiary record establishes that the electronic cargo manifest transmitted for the vessel omitted the shipments documented under Sea Waybills US2387246, US2387773, and US2387995, even though those units were physically carried aboard the vessel (Proposed Findings ¶¶16–21, 31–35).

During an inspection conducted by the Customs Authorities in Pisco, Peru, officials determined that the three cargo units were not included in the transmitted cargo manifest and, as Respondent's own internal communication reports, "as a consequence of this, the Customs Authorities decided to seize the 03 mentioned units."

Respondent's internal communications further acknowledge that the omission occurred during the electronic transmission of the manifest by Respondent's documentation department and resulted from an "involuntary mistake."

II. Jurisdiction

The Federal Maritime Commission has jurisdiction over this dispute pursuant to the Shipping Act of 1984, as amended, 46 U.S.C. § 40101 et seq.

III. Factual Background

WNL arranged ocean transportation for three boats through WWO for carriage aboard the vessel MORNING LADY. WWO issued Sea Waybills US2387246, US2387773, and US2387995 covering the shipments.

On January 5, 2024, Respondent's documentation department transmitted the electronic cargo manifest information for the vessel MORNING LADY. Respondent's internal communications confirm that during the electronic transmission of the manifest, the information corresponding to the three shipments was not included due to an "involuntary mistake."

During vessel operations on January 7, 2024, Customs Authorities in Pisco conducted an inspection of the vessel and determined that three cargo units aboard the vessel were not included in the transmitted cargo manifest.

IV. Legal Standard

Section 41102(c) of the Shipping Act of 1984 prohibits a regulated ocean carrier from failing to establish, observe, and enforce just and reasonable regulations and practices relating to receiving, handling, storing, or delivering property.

V. Argument

A. Transmission of Cargo Manifest Information Is a Carrier Responsibility

The preparation and electronic transmission of vessel cargo manifest information is performed within the carrier's operational systems. NVOCCs and shippers do not have the ability to access, modify, or transmit the carrier's electronic manifest submissions to customs authorities.

B. Respondent's Manifest Omission Constitutes an Unreasonable Carrier Practice

Because the omission occurred within the carrier's operational process and directly affected shipments arranged by WNL, the manifest omission constitutes an unreasonable carrier practice within the meaning of 46 U.S.C. § 41102(c).

C. The Manifest Omission Directly Caused the Seizure of the Cargo

The record establishes a direct causal chain:

Carrier manifest transmission error

→ Customs inspection discovered cargo not reflected in the manifest

→ Customs seizure of the cargo.

Respondent's own internal communication confirms that the omission occurred due to an "involuntary mistake," and that the seizure occurred as a consequence of that omission.

VI. Conclusion

The evidentiary record demonstrates that the seizure of the cargo occurred as a direct consequence of Respondent's manifest transmission error. Because the omission arose from Respondent's operational process for transmitting cargo manifest information and directly affected the transportation services arranged by Complainant, the conduct constitutes an unreasonable carrier practice under 46 U.S.C. § 41102(c).

Respectfully submitted,

/s/ Jean Lopez

Jean Lopez

President

Worldwide Nexus Logistics, LLC

CERTIFICATE OF SERVICE

I hereby certify that on April 14, 2026, I caused a true and correct copy of the previously filed Complainant's Brief, Proposed Findings of Fact, and Appendix Index, originally submitted on March 18, 2026, to be served by electronic mail upon counsel for Respondent as follows:

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Respectfully submitted,

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